

26STLC00627 26STLC00627

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-14

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Case Number: 26STLC00627 Hearing Date: September 14, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Tsang Han Wang's

Plaintiff Tsang Han Wang's Demurrer to the Amended Answer is continued to a date to be determined following resolution of Defendant Malwarebytes, Inc.'s Renewed Motion to Require Plaintiff to Furnish Security Pursuant to CCP § 391.1.

Status Conference Re: Stay of Action is scheduled for 10/24/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

On January 29, 2026, Plaintiff

Tsang Han Wang ("Plaintiff") filed the instant action against Defendant Malwarebytes, Inc. ("Defendant"). Defendant filed its Answer on March 9, 2026. On March 18, 2026, Plaintiff filed (1) the Application for Leave to File Memorandum of Points and Authorities in Excess of Page Limit; (2) the Demurrer to Answer; and (3) the Motion for Judgment on the Pleadings. On April 22, 2026, the Court sustained the Demurrer to the Answer with leave to amend as to the fifth through ninth and twenty-second affirmative defenses, and otherwise overruled the Demurrer. (Minute Order, 04/22/26.) Defendant filed its Amended Answer on May 12, 2026.

On May 14, 2026, Defendant filed a Motion to Require Plaintiff to Furnish Security. Defendant filed its opposition to the instant Motion for Judgment on the Pleadings on June 5, 2026, to which Plaintiff filed an objection and Notice of Violation of Stay on June 8, 2026. At the initial hearing on the Motion, the Court continued the matter on account of the stay

imposed by Code of Civil Procedure sections 391.1 and 391.6. (Minute Order, 06/22/26.) The Court denied Defendant's Motion to Require Plaintiff to Furnish Security on July 7, 2026, without prejudice. (Minute Order, 07/07/26.)

On July 22, 2026, the Court denied Plaintiff's Motion for Judgment on the Pleadings regarding the 29th and 30th affirmative defenses in the Amended Answer. (Minute Order, 07/22/26.) Plaintiff filed the instant Demurrer to Defendant's Amended Answer on August 14, 2026. Defendant filed an opposition on August 31, 2026 and Plaintiff replied with evidentiary objections on September 1, 2026.

On September 8, 2026, Defendant filed a Renewed Motion to Require Plaintiff to Furnish Security Pursuant to CCP § 391.1, which is set for hearing on October 14, 2026. Code of Civil Procedure section 391.6 expressly provides that "when a motion pursuant to Section 391.1 is filed prior to trial the litigation is stayed ... until 10 days after the motion shall have been denied, or if granted, until 10 days after the required security has been furnished and the moving defendant given written notice thereof." (Code Civ. Proc., § 391.6.) Therefore, the entire litigation, including the hearing on the instant Motion is stayed until disposition of the Renewed Motion to Require Plaintiff to Furnish Security Pursuant to CCP § 391.1.

Status Conference Re: Stay of Action is scheduled for 10/24/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Judicial Assistant to give notice.